

Court 9:00 12	24CV432080	Serenity vs. Palo Alto Mind Body	Defendant moves this Court to reconsider order denying defendant's motion to dismiss defendant without prejudice and to maintain proceedings. Defendant does not offer any new set of facts as required by CCP 1008. Defendant's motion is DENIED.
9:00 13	25CV462289	James Cuevas vs FCA	Motion withdrawn.
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Line 1,2

Defendant, General Motors LLC's ("GM") demurrer to the fifth cause of action in Plaintiffs' first amended complaint ("FAC") and motion to strike punitive damages came on for hearing before the Court on January 15, 2026. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on January 14, 2026.

I. Alleged Facts

On August 7, 2015, Plaintiffs entered a warranty contract with GM for a 2015 GMC Sierra 1500, vehicle identification number 3GTU2VEC1FG291754 ("Subject Vehicle"), which was manufactured and/or distributed by GM and sold by Capitol GMC in San Jose, California. The contract warranted the Subject Vehicle "bumper-to-bumper", including but not limited to powertrain, emission, etc. (FAC ¶ 6) Prior to Plaintiffs purchasing the Subject Vehicle, GM knew that vehicles equipped with the same 6-speed transmission, as installed in the Subject Vehicle, suffered from one or more defects that could cause hesitation or delayed acceleration, harsh or hard shifting, jerking, shuddering, surging, acceleration, deceleration, or symptoms requiring reprogramming of the transmission control module ("TCM") and/or powertrain control module ("PCM"). ("Transmission Defect") GM acquired this knowledge through various sources of information, including but not limited to pre-production testing, pre-production design failure mode and analysis data, production failure mode and analysis data, early consumer complaints made exclusively to GM and its network of dealers, aggregate warranty data compiled from GM's network of dealers, testing conducted by GM in response to consumer complaints, and repair order and parts data received by GM from its network of dealers. (FAC ¶¶ 59-60)

GM and its directors, officers, employees, affiliates, and/or agents concealed the Transmission Defects from public and Plaintiffs. Had Plaintiffs known the Subject Vehicle and its transmission were defective